

RTE Act 2009 and Child-Rights Laws: POCSO, RPwD, JJ

आरटीई अधिनियम 2009 और बाल अधिकार कानून: पोक्सो, आरपीडब्ल्यूडी, जेजे

What UPSC asks on this 1. Section numbers and limits of the RTE Act: the 25% quota, s.13 penalties, s.16 detention, s.17, s.21 SMC, s.27, and the Schedule (PTR, days, hours). 2. The constitutional base: Art 21A, Art 45, Art 51A(k), the 86th Amendment and the 1 April 2010 date. 3. POCSO: age, gender-neutrality, "aggravated" offences by school staff, mandatory reporting (s.19 and s.21), Special Courts, the 2019 amendment. 4. RPwD: 21 disabilities, 40% benchmark, free education 6–18, 4% and 5% reservations, s.16 duties of schools. 5. JJ Act: the two categories of child, JJB versus CWC, heinous offences and 16–18-year-olds, the 2021 amendment. 6. Mix-up questions on age limits across Acts, and "which body monitors" (NCPCR/SCPCR).

1. The constitutional base: why an RTE Act exists

The 86th Amendment (2002) made elementary education a Fundamental Right, and the RTE Act 2009 is the law that gives it shape.

Before 2002 education was only a Directive Principle (old Art 45: free and compulsory education up to 14

within ten years). The Supreme Court in *Mohini Jain* (1992) and *Unni Krishnan* (1993) read a right to education into Art 21, up to age 14. Parliament then passed the **Constitution (86th Amendment) Act, 2002**, which did three things:

- Inserted **Art 21A**: the State shall provide free and compulsory education to all children aged **six to fourteen** "in such manner as the State may, by law, determine". The RTE Act is that law.
- Substituted **Art 45**: the State shall endeavour to provide **early childhood care and education** for all children until they complete **six years**.
- Added **Art 51A(k)**, the **eleventh Fundamental Duty**: a parent or guardian must provide opportunities for education to the child or ward aged 6–14.

Art 21A and the RTE Act both came into force on **1 April 2010**. Education is in the **Concurrent List** (moved from the State List by the 42nd Amendment, 1976), which is why Central Rules (2010) and Delhi Rules (2011) both exist under the Act.

Articles that pair with child rights: **Art 24** (no child below 14 in a factory, mine or hazardous work), **Art 39(e) and (f)** (childhood protected from exploitation), **Art 15(3)** (special provisions for children), **Art 46** (weaker sections), **Art 350A** (mother-tongue instruction at primary stage).

Memory aid: **21A – 45 – 51A(k)** = Right – Directive – Duty, all from the **86th**, all alive from **2010**.

2. RTE Act 2009: shape and definitions

Act 35 of 2009, in force 1 April 2010: 7 chapters, 38 sections and one Schedule of school norms.

The Act originally did not extend to Jammu and Kashmir. It has been amended three times: **2012** (children with disability, minority exemption), **2017** (deadline for untrained teachers) and **2019** (no-detention).

Definitions UPSC picks from s.2:

- **s.2(c) child:** a male or female child aged **6 to 14** years.
- **s.2(d) disadvantaged group:** SC, ST, socially and educationally backward classes, or any group disadvantaged by social, cultural, economic, geographical, linguistic, gender or other notified factor. The 2012 amendment added children with disability here too.
- **s.2(e) weaker section:** a child whose parent's annual income is below the limit notified by the appropriate government.
- **s.2(ee) child with disability** (added 2012): now read with the RPwD Act 2016.
- **s.2(f) elementary education:** Classes **I to VIII**.
- **s.2(n) school**, four kinds: (i) government or local-authority school, (ii) **aided** school, (iii) **specified category** school (Kendriya Vidyalaya, Navodaya Vidyalaya, Sainik School), (iv) **unaided** school.
- **s.2(b) capitation fee:** any donation or payment other than the notified fee. **s.2(o) screening**

procedure: any method of selection other than a random one.

Delhi example: a Sarvodaya Vidyalaya run by the Directorate of Education is a s.2(n)(i) school; a DoE-aided school is (ii); a private school on DDA land is (iv).

3. Rights of the child, duties of the State (s.3 to s.11)

Every child gets free elementary education in a neighbourhood school, and the government, local authority and parents each carry a listed duty.

- **s.3:** right to free and compulsory education in a **neighbourhood school** till completion of elementary education. "Free" means no fee or charge that would prevent completion. The 2012 proviso gives a child with disability the same right, and a child with **severe or multiple disabilities** may opt for **home-based education**.
- **s.4:** a child above six never admitted, or who dropped out, is admitted to an **age-appropriate class** and given **special training**; the child may continue beyond 14 to finish Class VIII.
- **s.5:** right to **transfer**; the head must issue the **transfer certificate immediately**, and a head who delays it is liable to **disciplinary action under the service rules**. A missing TC cannot delay or deny admission.
- **s.6:** a neighbourhood school must be established within **three years** where none exists. Central Rules fix the neighbourhood as **1 km** (Classes I–V) and **3 km** (VI–VIII).

- **s.7:** Centre and States share the cost. **s.8 and s.9:** duties of the appropriate government and the local authority (availability of schools, admission, attendance, completion, infrastructure, teachers, records of children up to 14).
- **s.10:** duty of **parents** to admit the child. **s.11:** the government "may" provide **pre-school education** for ages 3–6. It is not a right under this Act.

Delhi example: a 9-year-old migrant child who never attended school is admitted straight into **Class IV**, not Class I, and the school arranges special training to bridge the gap.

4. Admission: the 25% quota, no screening, no capitation (s.12 to s.15)

s.12(1)(c) makes private schools share the duty, and **s.13 to s.15** stop them from choosing or excluding children.

s.12(1): (a) government schools admit all children; (b) aided schools admit free in proportion to aid received, minimum **25%**; (c) **specified-category and unaided schools** admit in **Class I** (or pre-school, if that is the entry class) at least **25%** of strength from **weaker-section and disadvantaged-group** children of the neighbourhood, free till Class VIII.

s.12(2): the State reimburses the school at **its own per-child expenditure or the actual fee, whichever is less**. A school already bound to give free seats because it got land or buildings at concession is not reimbursed for that part.

s.13: no **capitation fee**, no **screening procedure**.

Penalties: capitation fee → fine up to **10 times** the fee; screening → **₹25,000** for the first contravention and **₹50,000** for each later one.

s.14: age is proved by a birth certificate issued under the **Births, Deaths and Marriages Registration Act, 1886** (the Act the section names) or another prescribed document, and **no child is denied admission for want of age proof**. **s.15:** admission is allowed even after the extended period; lateness is not a ground for denial.

Court rulings the exam quotes:

- *Society for Unaided Private Schools of Rajasthan v. Union of India* (2012): the Act and the 25% quota are valid for unaided non-minority schools; **unaided minority schools are exempt**.
- *Pramati Educational and Cultural Trust* (2014, Constitution Bench): the Act does not apply to **any minority school**, aided or unaided (Art 30). The 2012 amendment had already inserted s.1(4)–(5) protecting Arts 29–30.
- *Lucknow Public School v. State of UP* (28 April 2026): a school must **first admit the child allotted under the quota** and raise eligibility disputes later; denial violates Art 21A.

Delhi example: EWS/DG admissions to private unaided schools run through the DoE's **centralised online lottery**; the allotted school may not interview the child or ask for a donation.

5. Teachers, classrooms and the no-detention story (s.16 to s.30)

This block holds the most-asked sections: detention (s.16), corporal punishment (s.17), SMC (s.21), teacher duties (s.24, s.27, s.28) and CCE (s.29).

s.16: from "no detention" to "exam in Classes 5 and 8"

The original s.16 said no child shall be **held back or expelled** till completion of elementary education. The **RTE (Amendment) Act 2019** (Act 1 of 2019, in force 1 March 2019) substituted it:

- A **regular examination** is held in **Class V and Class VIII** at the end of every academic year.
- A child who fails gets **additional instruction** and a **re-examination within two months** of the result.
- If the child fails again, the **appropriate government may** allow schools to hold the child back. Each State or UT decides.
- **No child may be expelled** till completion of elementary education.

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`mermaid flowchart TD
  A[Exam in Class 5 or 8] --> B{Passed?}
  B -- Yes --> C[Promoted]
  B -- No --> D[Additional instruction]
  D --> E[Re-exam within 2 months]
  E -- Pass --> C
  E -- Fail --> F[State may hold back]
  F --> G[No expulsion till Class 8]
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The Centre notified the **RTE (Amendment) Rules, 2024** in **December 2024** (G.S.R. 777(E)), applying detention after the re-exam in the schools it runs (Kendriya Vidyalayas, Navodaya Vidyalayas, Sainik Schools) from **2025-26**, with competency-based exams and the class

teacher guiding the held-back child. About 16–18 States and UTs had opted in earlier under the 2019 power. Delhi's own position has not been confirmed from a DoE notification; check the latest edudel.nic.in circular before the exam.

The other sections in this block

- **s.17: no physical punishment or mental harassment;** the offender faces disciplinary action under the service rules. In Delhi, the Delhi High Court had already struck down the corporal-punishment clause of the Delhi School Education Rules 1973 in *Parents Forum for Meaningful Education* (2000).
- **s.18:** no school without a **certificate of recognition**; penalty up to **₹1 lakh** plus **₹10,000 per day** of continuing default. **s.19:** existing schools had **3 years** to meet the Schedule norms.
- **s.21:** every school **other than an unaided school** (so government, local-authority, aided and specified-category schools) has a **School Management Committee** with at least **three-fourths parents or guardians**, proportionate representation of disadvantaged and weaker-section parents, and **50% women**. Under the 2012 amendment the SMC is **advisory only** in **minority schools and all other aided schools**. It monitors the school, prepares the **School Development Plan** (s.22) and watches grant use.
- **s.23:** teacher qualifications are set by the **academic authority notified by the Centre (NCTE)**, which is

where the **TET** comes from. The 2017 amendment gave untrained in-service teachers till **31 March 2019**. The Supreme Court in *Anjuman Ishaat-e-Taleem Trust* (Sept 2025; review dismissed May 2026) held TET **mandatory for in-service teachers** by **31 August 2028**; teachers with under five years of service left are exempt but cannot be promoted.

- **s.24:** teacher duties: regular and punctual attendance, complete the curriculum in time, assess each child and give extra help, hold parent meetings. **s.25:** maintain the Schedule PTR. **s.26:** vacancies must not exceed **10%** of sanctioned strength.
- **s.27:** teachers may be deployed for non-educational work only for the **decennial census, disaster relief** and **elections** (local body, State legislature, Parliament).
- **s.28:** no teacher may give **private tuition**.
- **s.29:** curriculum and evaluation come from the **academic authority** (NCERT for the Centre; **SCERT Delhi** since 2013). The curriculum must follow constitutional values, aim at all-round development, be activity-based, use the **mother tongue as medium as far as practicable**, keep the child free of fear, trauma and anxiety, and use **comprehensive and continuous evaluation**. **Learning outcomes** entered the Central Rules in **2017**, and Delhi amended its Rules the same year.
- **s.30:** no **Board examination** till completion of elementary education; every child finishing Class

VIII gets a **certificate**.

- **s.31:** the **NCPCR and SCPCRs** monitor the right and hear complaints. **s.32:** a grievance goes first to the **local authority**, then on appeal to the SCPCR. **s.33–34:** National and State Advisory Councils. **s.38:** rule-making (Central Rules 2010; **Delhi RTE Rules 2011**, notified 23 Nov 2011).

The Schedule: norms every head of school must know

- **PTR:** Classes I–V **30:1**; Classes VI–VIII **35:1**, with at least one teacher each for science and mathematics, social studies and languages. A full-time **head teacher** is due above **150** children (primary) and above **100** (upper primary). Primary schools above 200 children must keep PTR at or below 40.
- **Working days:** **200** (I–V) and **220** (VI–VIII).
Instructional hours: **800** and **1000**.
- **Teacher working hours:** **45 per week**, including preparation.
- **Building:** all-weather, one classroom per teacher, head-teacher office, separate toilets for boys and girls, drinking water, kitchen for the mid-day meal, playground, boundary wall, library, play material.

Memory aid: **30-35 | 200-220 | 800-1000 | 45:** ratio, days, hours, week.

6. Corporal punishment and school safety: what a VP is accountable for

s.17 RTE, NCPCR guidelines and the MoE School Safety Guidelines 2021 together fix the head of

school's responsibility for every child on campus.

NCPCR's **Guidelines for Eliminating Corporal Punishment in Schools** treat three things as punishment: **physical punishment, mental harassment and discrimination**. Every school is to have a **Corporal Punishment Monitoring Cell** (teachers, parents, a doctor, a lawyer nominated by the District Legal Services Authority, a child-rights worker and senior students), dispose of complaints quickly, and take a written undertaking from staff.

The **MoE Guidelines on School Safety and Security (2021)**, issued after Supreme Court orders, make the **school management and head accountable** for physical, emotional and health safety, require a **School Safety Committee**, a complaint mechanism and POCSO reporting. NCPCR's **Manual on Safety and Security of Children in Schools** compiles these, and its **2024 guidelines on bullying and cyberbullying** add an anti-bullying committee.

Delhi example: if a PGT slaps a student, the VP records the complaint, informs the Principal and the District DDE, and the matter goes down the **CCS (CCA) Rules** disciplinary route. "The student was rude" is no defence under s.17.

7. POCSO Act 2012: the law a head of school can personally be prosecuted under

A gender-neutral law for children under 18 that makes reporting compulsory and makes a school employee's offence "aggravated".

The **Protection of Children from Sexual Offences Act, 2012** (Act 32 of 2012) came into force on **14 November 2012**, Children's Day. The **POCSO (Amendment) Act 2019** took effect on **16 August 2019**, and the **POCSO Rules 2020** (9 March 2020) replaced the 2012 Rules. A **child** is anyone **below 18**; victim and offender may be of either sex.

Offences and punishments after 2019:

Offence (defining / punishing section)	Punishment
Penetrative sexual assault (s.3 / s.4)	Min 10 years to life; min 20 years if child below 16
Aggravated penetrative sexual assault (s.5 / s.6)	Min 20 years to life, or death
Sexual assault (s.7 / s.8)	3 to 5 years
Aggravated sexual assault (s.9 / s.10)	5 to 7 years
Sexual harassment (s.11 / s.12)	Up to 3 years
Using a child for pornography (s.13 / s.14)	Min 5 years ; storage punished under s.15

An offence is **aggravated** (s.5, s.9) when committed by a police officer, armed-forces member, public servant, **staff or management of a jail, hospital, educational or religious institution**, a relative or person in trust, or against a child below 12, a disabled or pregnant child, or repeatedly.

Duties and procedure:

- **s.19: any person** who knows or apprehends that an offence has been or is likely to be committed **shall report** to the **Special Juvenile Police Unit (SJPU) or local police**. No internal inquiry comes first. Under **s.19(6)** the police report the case to the **CWC and the Special Court within 24 hours**.
- **s.20:** media, hotel, hospital, studio and photographic staff must report material involving children.
- **s.21:** failure to report or record: up to **6 months** or fine or both. If the **person in charge of an institution** fails to report an offence by a **subordinate**: up to **one year** and fine. A **child** is never punished for not reporting.
- **s.22:** a false complaint is punishable (up to 6 months), but **not if made by a child**.
- **s.23:** media may not disclose the child's identity; breach draws **6 months to 1 year**.
- **s.24–26:** the child's statement is taken at home or a place of choice, **by a woman officer where possible, not in uniform**, with a trusted adult present and an interpreter or special educator if needed; no child is kept at a police station at night.
- **s.27:** medical examination with a parent present, by a **woman doctor for a girl**.
- **s.28: Special Courts** (a designated Sessions Court); **s.29:** presumption against the accused once foundational facts are shown; **s.33:** questions go through the judge, no aggressive cross-examination; **s.35:** evidence within **30 days**, trial

within **one year** as far as possible; **s.36**: the child never sees the accused; **s.37**: in-camera trial; **s.39**: State guidelines on experts and **support persons** (NCPCR Model Guidelines, 18 March 2024); **s.40**: right to legal counsel; **s.42**: where the act is also an offence under the IPC/BNS, the **greater punishment** applies; **s.44**: **NCPCR and SCPCRs** monitor.

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``mermaid flowchart TD
  A[Teacher learns of abuse] --> B[Report to SJPU or police]
  A --> C[Also inform head of school]
  B --> D[CWC and Special Court told in 24 hours]
  B --> E[Statement and medical exam]
  D --> F[Support person appointed]
  E --> G[Special Court trial]
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POCSO Rules 2020 for schools: **Rule 3** requires every institution housing or in regular contact with children (schools, crèches, sports academies) to do **periodic police verification and background checks** of all staff, regular or contractual, train them on child safety, and adopt a **child protection policy**. **Rule 4**: once the police inform the CWC (within 24 hours, s.19(6)), the CWC decides on care within three days. **Rule 8**: **special relief** for immediate needs; **Rule 9**: **interim and final compensation** ordered by the Special Court; **Rule 11**: reporting child pornographic material; **Rule 12**: NCPCR/SCPCR monitoring.

Delhi example: a Class 7 girl tells her class teacher that a contractual staff member touched her. The VP's correct sequence: secure the child, inform the Principal, **call the police or 1098/112 the same day**

(s.19), inform parents, keep the child's name out of every notice (s.23), and let the police, not the school, record her statement. A VP who "waits for the inquiry committee" risks prosecution under s.21.

In *State of UP v. Anurudh* (Jan 2026) the Supreme Court urged the Centre to consider a "Romeo-Juliet" exception for consensual adolescent relationships.

POCSO has not been amended; the age of consent remains 18.

8. RPwD Act 2016: inclusion as a legal duty

21 disabilities, a 40% benchmark, free education for ages 6–18, and listed duties on every recognised school.

The **Rights of Persons with Disabilities Act, 2016** (Act 49 of 2016) came into force on **19 April 2017**, replacing the **PwD Act 1995**, to give effect to the **UN Convention on the Rights of Persons with Disabilities** (India ratified it in 2007). Recognised disabilities rose from **7 to 21**.

- **Specified disabilities (Schedule, 21)**: locomotor disability (including leprosy cured, cerebral palsy, dwarfism, muscular dystrophy, **acid attack victims**), blindness, low vision, deaf, hard of hearing, speech and language disability, intellectual disability, **specific learning disabilities** (dyslexia, dysgraphia, dyscalculia), autism spectrum disorder, mental illness, chronic neurological conditions (multiple sclerosis, Parkinson's), blood disorders

(haemophilia, thalassaemia, sickle-cell disease), multiple disabilities.

- **Benchmark disability** (s.2(r)): **40% or more** of a specified disability, certified.
- **Inclusive education** (s.2(m)): students with and without disability learn together, with teaching adapted to each.
- **s.16: duties of every government-funded or recognised educational institution:** admit without discrimination; make building, campus and facilities **accessible**; give **reasonable accommodation** and individual support; use suitable **modes of communication** (Braille, sign language); **detect specific learning disabilities early**; monitor participation and attainment; provide transport.
- **s.17: government measures:** a **school-age survey every 5 years**; teachers trained in **sign language and Braille**; **resource centres**; **free books, learning materials and assistive devices** to children with benchmark disabilities up to **18**; **scholarships**; **curriculum modifications** such as extra time, a scribe and exemption from a second or third language.
- **s.31:** a child with **benchmark disability aged 6 to 18** has the right to **free education** in a neighbourhood or special school of choice.
- **s.32:** at least **5%** seats in government and aided higher-education institutions, with **5 years' age relaxation**.

- **s.34:** at least **4%** of government posts: 1% each for blindness/low vision; deaf/hard of hearing; the locomotor group; and 1% shared by autism, intellectual disability, SLD, mental illness and multiple disabilities.
- Machinery: **Chief Commissioner** for PwD at the Centre, **State Commissioners**, Central and State Advisory Boards, **Special Courts** (designated Sessions Courts); **s.92** punishes intentional insult, intimidation or denial of food with **6 months to 5 years**. The **UDID card** is the single national disability identity.

Links to the school: RTE s.2(ee) and the s.3 proviso bring these children under RTE; the RTE Schedule was amended on **29 September 2022** to add PTR norms for special teachers in general schools. **Samagra Shiksha's inclusive-education component** covers CWSN from pre-primary to Class XII in government and aided schools: identification camps, aids and appliances, Braille and large-print books, escort and transport allowance, a stipend for girls with disabilities, home-based education, and resource rooms with special educators. NEP 2020 (paras 6.10–6.14) adopts the RPwD definition of inclusion.

Delhi example: a Class 6 boy with dyslexia (an SLD) is entitled under s.16 to early identification and under s.17 to extra time and a scribe; the school's **special educator** prepares his individual plan and the DoE's Inclusive Education Branch supplies assistive devices.

9. JJ Act 2015: children in conflict with law, children needing care

Two tracks: the Juvenile Justice Board for children accused of offences, the Child Welfare Committee for children needing protection, plus a special assessment for 16–18-year-olds accused of heinous crimes.

The **Juvenile Justice (Care and Protection of Children) Act, 2015** (Act 2 of 2016) came into force on **15 January 2016**, replacing the 2000 Act after the Delhi gang-rape case of December 2012. It follows the **UN Convention on the Rights of the Child** (1989; India ratified it in 1992). A **child** is below **18** (s.2(12)).

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`mermaid flowchart TD
  A[Child under 18] --> B[In conflict with law]
  A --> C[Needs care and protection]
  B --> D[Juvenile Justice Board]
  C --> E[Child Welfare Committee]
  D --> F[Age 16–18 heinous: assessment]
  F --> G["Children's Court decides adult trial"]
  E --> H["Children's Home or family"]`
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- **Child in conflict with law** (s.2(13)): alleged or found to have committed an offence while under 18. **Child in need of care and protection** (s.2(14)): homeless, working in breach of labour law, abused, abandoned, orphaned, trafficked, at risk of child marriage, and similar.
- **Offence tiers: petty** (maximum up to 3 years), **serious** (3 to 7 years; after 2021 also offences with a maximum above 7 years but no minimum or a

minimum below 7 years), **heinous** (minimum 7 years or more).

- **Juvenile Justice Board (s.4):** a **Metropolitan Magistrate or Judicial Magistrate First Class** plus **two social workers, at least one a woman. Child Welfare Committee (s.27):** a **chairperson and four members, at least one a woman** and one an expert on children. Every district has both.
- **s.15:** for a child aged **16 to 18** alleged to have committed a **heinous offence**, the JJB makes a **preliminary assessment** (mental and physical capacity, understanding of consequences, circumstances) within **three months**, and may send the case to the **Children's Court (s.18(3))**, which decides whether to try the child as an adult (s.19).
s.21: no child gets **death or life imprisonment without the possibility of release**.
- **s.31:** a child in need of care is produced before the CWC within **24 hours**. **s.41:** every **child care institution must be registered**. Institutions: Observation Home, Special Home, Place of Safety, Children's Home, Open Shelter, Specialised Adoption Agency; **CARA** is the central adoption authority (s.68).
- Offences against children: **s.74** disclosure of identity (up to 6 months or ₹2 lakh); **s.75 cruelty:** up to **3 years or ₹1 lakh**; if by staff of an organisation entrusted with the child's care, **rigorous imprisonment up to 5 years and ₹5 lakh**; **s.76** begging; **s.77** liquor or narcotics; **s.78** peddling; **s.79** exploiting a child employee; **s.82** corporal

punishment in a child care institution: ₹10,000 for the first offence, up to 3 months for a repeat; **s.83** use by militant groups; **s.85:** offences against disabled children get **twice** the punishment.

- **s.107:** every police station has a **Child Welfare Police Officer** and every district a **Special Juvenile Police Unit**, the same SJPU that POCSO names.
- **JJ (Amendment) Act 2021** (in force **1 September 2022**): **District Magistrates and Additional DMs** issue **adoption orders** (not courts) and oversee CWCs, District Child Protection Units and CCIs; "serious offence" widened; offences under the Act punishable with 3 to 7 years made **non-cognizable**; stricter eligibility for CWC members.

Delhi example: a 17-year-old student arrested for grievous assault goes before the **JJB**, not a regular court. The school must not name him in any notice or communication (s.74). A child found begging at the gate is referred to **Childline 1098** (now integrated with **112** under Mission Vatsalya) and the **CWC**.

10. The other Acts and bodies UPSC pairs with these Four more Acts and two commissions complete the age-limit table.

- **CPCR Act 2005:** created the **NCPCR** (constituted **March 2007**, under the Ministry of Women and Child Development): a chairperson and **six members, at least two women**, three-year terms. Each State has an SCPCR; Delhi's is the **DCPCR** (2008). Their roles: RTE s.31, POCSO s.44, JJ s.109.

- **Prohibition of Child Marriage Act 2006:** child = male under **21**, female under **18**. The marriage is **voidable** at the option of the child party within **two years of attaining majority**, and **void** where the child was trafficked, enticed or forced. An adult male marrying a child, or anyone solemnising or promoting one: up to **2 years rigorous imprisonment and/or ₹1 lakh**. States appoint **Child Marriage Prohibition Officers**.
- **Child and Adolescent Labour (Prohibition and Regulation) Act 1986**, amended **2016**: no child **below 14** in any occupation, except helping a family enterprise after school hours or working as a child artist (not circus); **adolescents (14–18)** barred from **hazardous** work. Penalty: **6 months to 2 years and/or ₹20,000 to ₹50,000**. The **PENCIL portal** tracks complaints. The 14 cut-off deliberately matches RTE.
- **Mission Vatsalya** (2021-22) replaced the Integrated Child Protection Scheme and funds CWCs, JJBs, DCPUs, CCIs and Childline.
- **UNCRC 1989**: four principles: non-discrimination, best interests of the child, survival and development, participation. India ratified it in **1992**.

The single most-tested mix-up:

Law	"Child" means
RTE Act 2009	6–14 years
RPwD Act 2016 (free education)	6–18, benchmark disability
POCSO 2012 and JJ Act 2015	below 18
PCMA 2006	girl below 18, boy below 21
Child Labour Act (2016)	child below 14; adolescent 14–18

Common traps

- **"RTE covers 3–18"**: wrong. RTE is 6–14 (s.2(c)); pre-school 3–6 is only a "may" in s.11; 6–18 is RPwD s.31.
- **"The 2019 amendment abolished no-detention"**: no. It created an exam in Classes 5 and 8 with a re-exam and let each State *choose* to hold back. Expulsion is still barred.
- **"The 25% quota applies to all schools"**: s.12(1)(c) covers unaided and specified-category schools; aided schools follow proportion-to-aid (minimum 25%); minority schools are exempt after *Pramati*.
- **Penalty swap**: screening ₹25,000 then ₹50,000; capitation fee 10 times; unrecognised school ₹1 lakh plus ₹10,000 a day.
- **PTR swap**: 30:1 primary, 35:1 upper primary; days 200/220; hours 800/1000.
- **SMC**: three-fourths parents and 50% women, not "half parents"; not required in unaided schools; advisory only in minority and aided schools.

- **s.27 exceptions:** census, disaster relief, elections only. Not "pulse polio" or "survey work".
- **POCSO reporting:** the duty is on *any person* (s.19); the head's failure over a *subordinate's* offence is up to one year (s.21(2)). Any option saying "the school may first hold an internal inquiry" is wrong.
- **POCSO is gender-neutral;** the IPC/BNS rape provisions are not. The 2019 death penalty is only for *aggravated penetrative* assault.
- **JJB vs CWC:** the Board (with a magistrate) handles children in conflict with law; the Committee (no magistrate) handles children in need of care. Preliminary assessment is for **16-18 and heinous only**.
- **RPwD numbers:** 21 disabilities, 40% benchmark, 4% posts, 5% HE seats, survey every 5 years. The 1995 Act had 7 disabilities and 3% job reservation.
- **Who monitors:** NCPCR/SCPCR for RTE (s.31) and POCSO (s.44); the Chief Commissioner for PwD under RPwD; the District Magistrate for CCIs after JJ 2021.

Remember for the exam

1. 86th Amendment 2002: Art 21A, new Art 45 (ECCE till 6), Art 51A(k); in force 1 April 2010 with the RTE Act (Act 35 of 2009).
2. RTE child = 6-14; elementary = Classes I-VIII; four kinds of school in s.2(n).
3. s.12(1)(c): 25% of Class I seats in unaided and specified-category schools; reimbursement at per-child cost or fee, whichever is less.

4. s.13: capitation fee → fine up to 10 times; screening → ₹25,000, then ₹50,000.
5. s.16 (2019 Amendment, from 1 March 2019): exam in Classes 5 and 8, re-exam within 2 months, State may hold back, no expulsion; Central Rules of Dec 2024 for KV/JNV/Sainik schools.
6. s.17 no corporal punishment or mental harassment; s.18 unrecognised school ₹1 lakh + ₹10,000 a day.
7. s.21 SMC (all schools except unaided): at least 3/4 parents, 50% women, advisory only in minority and aided schools; s.22 School Development Plan; Delhi RTE Rules notified 23 Nov 2011.
8. s.27: census, disaster relief, elections only; s.28 no private tuition; s.29 CCE and mother tongue; s.30 no Board exam till Class VIII.
9. Schedule: PTR 30:1 / 35:1; 200 / 220 days; 800 / 1000 hours; 45-hour week; head teacher above 150 / 100 children.
10. POCSO: Act 32 of 2012, in force 14 Nov 2012; child below 18; gender-neutral; 2019 amendment (16 Aug 2019) added death for aggravated penetrative assault and a 20-year minimum for victims under 16.
11. POCSO s.19 mandatory reporting to SJPU/police; s.21: 6 months, or 1 year for the head of an institution; s.35: evidence in 30 days, trial in 1 year; Rules 2020 Rule 3: police verification of school staff.
12. RPwD 2016 (in force 19 April 2017): 21 disabilities, 40% benchmark, free education 6–18 (s.31), 5% HE

seats (s.32), 4% posts (s.34), survey every 5 years (s.17).

13. JJ Act 2015 (in force 15 Jan 2016): JJB = magistrate + 2 social workers; CWC = chairperson + 4; heinous = minimum 7 years; preliminary assessment for 16–18 (s.15); 2021 amendment: DM issues adoption orders (from 1 Sept 2022).
14. PCMA: girl 18 / boy 21, voidable within 2 years of majority; Child Labour: ban below 14, adolescents 14–18 out of hazardous work.
15. NCPCR: CPCR Act 2005, set up March 2007, under MWCD, chairperson + 6 members; DCPCR for Delhi; Childline 1098.

Sources

- Constitution (86th Amendment) Act, 2002 (Arts 21A, 45, 51A(k)).
- Right of Children to Free and Compulsory Education Act, 2009, with the 2012, 2017 and 2019 Amendment Acts and the Schedule; S.O. 1044(E) of 28 Feb 2019 (commencement of the 2019 Amendment); Schedule amendment of 29 Sept 2022 (special teachers).
- RTE (Amendment) Rules, 2024, G.S.R. 777(E) (December 2024); Central RTE Rules 2010; RTE (Amendment) Rules 2017 (learning outcomes).
- Delhi Right of Children to Free and Compulsory Education Rules, 2011 (notified 23 Nov 2011) and the 2013 and 2017 amendments; SCERT Delhi notification as Academic Authority (2013).

- Protection of Children from Sexual Offences Act, 2012, as amended by the POCSO (Amendment) Act, 2019; POCSO Rules, 2020; NCPCR Model Guidelines on Support Persons under s.39 (18 March 2024).
- Rights of Persons with Disabilities Act, 2016 and its Schedule.
- Juvenile Justice (Care and Protection of Children) Act, 2015; JJ (Amendment) Act, 2021; JJ Model Rules 2016 and Model Amendment Rules 2022.
- Commissions for Protection of Child Rights Act, 2005; Prohibition of Child Marriage Act, 2006; Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 as amended in 2016.
- NCPCR Guidelines for Eliminating Corporal Punishment in Schools; NCPCR Manual on Safety and Security of Children in Schools; MoE Guidelines on School Safety and Security (2021); NCPCR Guidelines on Preventing Bullying and Cyberbullying (2024).
- Supreme Court: Society for Unaided Private Schools of Rajasthan v. Union of India (2012); Pramati Educational and Cultural Trust (2014); Anjuman Ishaat-e-Taleem Trust (2025, review dismissed 2026); Lucknow Public School v. State of UP (2026); State of UP v. Anurudh (2026).
- Knowledge base: research/02-child-rights-law.md and research/05-current-affairs.md (checked Oct 2026).

Quick facts

- 86th Amendment 2002 inserted Art 21A (free and compulsory education, ages 6–14), substituted Art 45 (ECCE till age 6) and added Art 51A(k); Art 21A and the RTE Act 2009 both took effect on 1 April 2010.
- RTE s.12(1)(c): unaided and specified-category schools admit at least 25% of Class I from weaker-section and disadvantaged-group children; the State reimburses per-child expenditure or actual fee, whichever is less (s.12(2)).
- RTE s.13 penalties: capitation fee → fine up to 10 times the fee; screening procedure → ₹25,000 for the first contravention, ₹50,000 for each later one.
- RTE s.16 after the 2019 Amendment (in force 1 March 2019): regular exam in Classes 5 and 8, re-exam within 2 months, State may hold back, but no expulsion till Class VIII.
- RTE s.21 SMC: required in every school except unaided schools; at least three-fourths parents or guardians and 50% women; advisory only in minority schools and all other aided schools (2012 amendment).
- RTE Schedule: PTR 30:1 (I–V) and 35:1 (VI–VIII); 200/220 working days; 800/1000 instructional hours; 45-hour teacher week; head teacher above 150 (primary) or 100 (upper primary) children.

- RTE s.27: teachers may be deployed for non-educational work only for the decennial census, disaster relief and elections; s.28 bars private tuition.
- POCSO Act 2012 (in force 14 Nov 2012) is gender-neutral and defines a child as below 18; an offence by staff of an educational institution is 'aggravated' (s.5, s.9).
- POCSO s.19 makes reporting to the SJPU or police mandatory for any person; s.21: up to 6 months for failure to report, up to 1 year for a head of institution who fails to report a subordinate's offence.
- POCSO 2019 Amendment (16 Aug 2019): death penalty possible for aggravated penetrative sexual assault (s.6); minimum 20 years for penetrative assault on a child below 16; POCSO Rules 2020 Rule 3 requires periodic police verification of school staff.
- RPwD Act 2016 (in force 19 April 2017): 21 specified disabilities, benchmark disability = 40% or more, free education for children with benchmark disability aged 6–18 (s.31), 5% seats in higher education (s.32), 4% of government posts (s.34).
- RPwD s.17: a survey of school-going children every 5 years to identify children with disabilities; free books and devices up to 18; curriculum modifications such as extra time and a scribe.

- JJ Act 2015 (in force 15 Jan 2016): JJB = Metropolitan Magistrate/JMFC + 2 social workers (one a woman); CWC = chairperson + 4 members; heinous offence = minimum 7 years; s.15 preliminary assessment for 16–18-year-olds accused of heinous offences.
- JJ (Amendment) Act 2021 (in force 1 Sept 2022): District Magistrates issue adoption orders and oversee CCIs; offences under the Act punishable with 3–7 years made non-cognizable.
- Age-limit contrast: RTE 6–14; RPwD free education 6–18; POCSO and JJ below 18; PCMA girl 18 / boy 21; Child Labour Act child below 14, adolescent 14–18.